



Report to the Legislature: Commonwealth Virtual Schools – Fiscal Year 2023

This report provides information on the implementation and impact of virtual schools pursuant to G.L. c. 71 §94(p).

January 2025

This document was prepared by the Massachusetts Department of Elementary and Secondary
Education

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January 2025

Dear Members of the General Court:

I am pleased to submit this Report to the Legislature: *Commonwealth Virtual Schools*, pursuant to G.L. c. 71, § 94(p).

A Commonwealth Virtual School (CMVS) is a public school operated by a board of trustees whose teachers primarily teach from a remote location using the Internet or other computer-based methods and whose students are not required to be located at the physical premises of the school. Like a charter school, a virtual school is an autonomous, single-school district that operates independently of any existing school district.

The Board of Elementary and Secondary Education (Board) grants a certificate to the board of trustees of a virtual school for not less than three years and not more than five years, as determined by the Board. The school and its board then become a state entity, directly accountable to the Board and the Department of Elementary and Secondary Education (Department). A virtual school may not discriminate in the enrollment of students based on race, color, national origin, creed, sex, gender identity, ethnicity, sexual orientation, mental or physical disability, age, ancestry, athletic performance, special need, English language proficiency, or academic achievement.

As of 2022-23, the time period covered by this report, the Board has granted two virtual school certificates, one to the Greater Commonwealth Virtual School (GCVS) and one to the TEC Connections Academy Commonwealth Virtual School (TECCA). Both schools enroll students statewide. These schools enrolled a total of 4,095 students as of October 1, 2022.

If you have any questions about this report, please contact Director Alison Bagg at 781-338-3218.

Sincerely,

A handwritten signature in blue ink, reading "Russell Johnston".

Russell D. Johnston
Acting Commissioner of Elementary and Secondary Education

Table of Contents

Introduction	2
Greater Commonwealth Virtual School	3
Fiscal Impact on Sending Districts	8
Course Completion and Student Attendance and Participation Rates	9
Enrollment Trends, Limits and Waitlists	12
Academic Achievement.....	13
Supervision and Support for Students in Elementary and Middle School	14
Support for Online Course Completion.....	15
Professional Development	17
Recommended Changes to the Commonwealth Virtual School Program	17
Appendix A: CMVS (G.L. c. 71 §94).....	20
Appendix B: CMVS Tuition by Sending District, FY23	28
Appendix C: CMVS Academic Achievement Data	35

Introduction

The Department of Elementary and Secondary Education respectfully submits this Report to the Legislature: Commonwealth Virtual Schools pursuant to G.L. c. 71 § 94(p):

“On or before September 1, the commissioner shall prepare a report on the implementation and impact of this section, including, but not limited to: (1) the fiscal impact on sending districts; (2) any necessary adjustments to tuition rates, including whether the amount should vary based on grade or type of school and the appropriate mechanism for funding virtual schools; (3) information on course completion and student attendance and participation rates; (4) the academic achievement of students attending commonwealth virtual schools; (5) the level of supervision or support needed for students in elementary and middle school; (6) the support necessary or helpful to ensure that students successfully complete online courses; (7) the professional development virtual school teachers require; (8) the appropriate enrollment limit for a virtual school, if any, including information about wait lists; and (9) the need for any changes to the commonwealth virtual school program.”

A Commonwealth Virtual School (CMVS) is a public school operated by a board of trustees where Massachusetts licensed teachers primarily teach from a remote location using the Internet or other computer-based methods, and where students are not required to be located at the physical premises of the school. The statute permits up to ten virtual schools to operate in the Commonwealth at any time.

As of the 2022-2023 school year, the Board of Elementary and Secondary Education (Board) had granted two virtual school certificates, one to the Greater Commonwealth Virtual School (GCVS) and one to the TEC Connections Academy Commonwealth Virtual School (TECCA).¹ Both schools enroll students statewide. As of October 1, 2022, these schools enrolled a total of 4,095 students including 1,155 from GCVS and 2,940 from TECCA for FY23, the period addressed in this report.

¹ GCVS has a three-year certificate to operate from July 1, 2019 through June 30, 2022. TECCA has a five-year certificate to operate from July 1, 2017 through June 30, 2022.

Greater Commonwealth Virtual School

Greater Commonwealth Virtual School (GCVS), formerly Greenfield Commonwealth Virtual School (GCVS), first opened in 2010 as the Massachusetts Virtual Academy of Greenfield (MAVA) under the innovation school law (G.L.c.71, § 92). On January 2, 2013, Governor Patrick signed into law Chapter 379 of the Acts of 2012, “An Act Establishing Commonwealth Virtual Schools” (Act), most of which is codified as G.L. c. 71, § 942. By statute, MAVA ceased to exist on July 1, 2013. Section 6 of the Act required the Board of Elementary and Secondary Education (Board) to grant a certificate to operate a Commonwealth of Massachusetts Virtual School (CMVS) to MAVA upon submission of a timely application that addressed the information specified in the statute. GCVS received its certificate on June 25, 2013, and began operating as a CMVS on July 1, 2013, serving 750 students in grades K through 12.

The school’s board of trustees oversees the executive director, who oversees the school administration. The school administration includes the director of business services, the director of teaching and learning (also referred to as the principal for grades K through 12), the flex program director (to oversee the asynchronous Edgenuity program), the director of information technology, the director of special education, the director of instructional technology, the director of accountability and support services, and the family engagement coordinator. The principal oversees the assistant principal for grades K through 8, the assistant principal for grades 9 through 12, and the guidance counselors. The principal and assistant principals share oversight of the general education teachers. The director of accountability and support services oversees English as a Second Language (ESL) and Title I teachers, and the director of special education oversees the special education teachers, the support center coordinator, and the school adjustment officer. The family engagement coordinator oversees the family engagement liaisons.

On June 2014, the Board voted to place GCVS on probation for the remainder of the school's certificate term (until June 30, 2016) with conditions requiring the school to: submit board of trustees minutes to the Department of Elementary and Secondary Education (Department); submit a final contract with K12, Inc.; align its curriculum with the Massachusetts curriculum frameworks; submit a comprehensive evaluation of its academic program; submit an action plan outlining strategies to improve academic performance; and demonstrate significant academic improvement by 2015. In February 2016, the Board renewed the school’s certificate and extended the school’s probationary status. The probationary conditions required the school to: limit its maximum enrollment to 750 students for grades K through 12; submit board of trustees meeting materials; submit weekly student enrollment reports; submit projected budgets to meet requirement for enrolling at least 5 percent of students from Greenfield; submit a corrective action plan to ensure at least 95 percent of students and student groups participated in MCAS; establish

an escrow account to pay for potential closure; and to demonstrate significant and sustained academic improvement by 2017.

In October 2017, the Board approved an amendment for the school to terminate its contract with K12, Inc. and to adopt the Canvas learning management system by Instructure, Inc. The school adopted a new curriculum, including EngageNY (grades K through 5, English language arts, and mathematics), and Florida Virtual Schools Global (FLVS) (grades 6 through 12, all subjects). Then in January 2018, the commissioner approved an amendment for the school to amend its mission statement. In March 2018, the Board extended the school's probationary status, maintained the prior probationary conditions, and added a new condition related to the provision of services for English learners.

In March 2019, the Board removed the school from probation and renewed the school's certificate with conditions requiring the school to: submit board of trustees meeting materials and weekly student enrollment reports; enroll a maximum of 750 students; provide the Department with updates on the implementation of its plan for serving English learners; submit a comprehensive evaluation of the school's mathematics, English language arts, and science programs by 2019; submit a comprehensive action plan for improving academic performance and addressing other areas for improvement by 2019; and demonstrate academic success by providing evidence that the school has exhibited significant and sustained academic improvement in mathematics, English language arts, and science on the statewide assessment for all student subgroups by 2021.

In June 2019, the GCVS teachers voted to join a union and are now an affiliate of the American Federation of Teachers (AFT). GCVS has negotiated the teachers' contract with the AFT. In April 2021, the contract was ratified and signed by all teachers and the GCVS Board of Trustees.

In October 2019, the commissioner approved a number of amendment requests to change elements of GCVS' educational program by adding supports for students (an in-person support center for students who struggle to advance in the school's academic program), adopting two new curricula (Accelerate Education for grades K-5 and Edgenuity for a 9-12 asynchronous program), and offering students dual enrollment at Greenfield Community College (GCC).

In July 2020, the commissioner approved an amendment to change the school's curriculum for grades K through 5 from Accelerate Education to the newly released curriculum from FLVS for all subjects for synchronous programs. This change allowed the school to implement FLVS across all grades. At that time, the commissioner also approved an amendment to increase the school's maximum enrollment by an additional 250 seats, for a new maximum enrollment of 1,000 until the end of the school's current certificate (June 30, 2022). This granting of additional seats was explicitly conditioned on GCVS demonstrating that its K-12 curriculum is fully aligned with the Massachusetts curriculum

frameworks by September 15, 2020. After a second request from GCVS, the maximum enrollment was amended again, in September 2020, with an increase of 50 additional seats, for a new maximum enrollment of 1,050 until the end of the current certificate.

In December 2020, the Department conducted an Accountability Review of GCVS and then in January 2021, the commissioner approved the school's request to report on a new accountability plan.

In September 2021, the commissioner approved an amendment to change the school's name from Greenfield Commonwealth Virtual School to Greater Commonwealth Virtual School and to change the Learning Management System (LMS) from Canvas to Schoology. In February 2022, the commissioner approved the school's request to increase its maximum enrollment by an additional 150 seats, for a new maximum of 1,200 seats, in order to meet elevated demand for students who are unable to attend school in person because of a medical condition. That same month, the commissioner approved the school's request to amend its enrollment policy to provide the first order enrollment preference to students who are unable to attend school in-person because of a medical condition.

The school has implemented leadership changes during the certificate term. In July 2019, GCVS created the position for and hired the family engagement coordinator. In August 2019, a vice principal for grades K through 5 was hired and in 2021 the vice principal's role was expanded to oversee grades K through 8. In September 2019, the asynchronous Edgenuity program director was hired. In June 2020 the responsibilities of the director of special education and student services position were split into two roles: the director of special education and the director of accountability and student services. In August 2020, a vice principal for grades 9 through 12 as hired. In December 2020, GCVS hired a new director of instructional technology. In August 2021, GCVS hired a new support center coordinator.

Pursuant to CMR 52.11, and in accordance with the Department's guidelines, on June 30, 2021, GCVS applied to renew its certificate. The Department conducted a renewal inspection on November 22-23, 2021 and the report from this inspection was issued to the school in March 2022. At its March 22, 2022, meeting, in accordance with G.L. c. 71, §94, and 603 CMR 52.00, the Board renewed the certificate of GCVS for an additional four-year period from July 1, 2022 through June 30, 2026 with a maximum enrollment of 1,200 students. Further, pursuant to 603 CMR 52.12, the Board imposed conditions that the school is required to meet as recommended by Commissioner Jeffrey C. Riley in his [memorandum](#) to the Board dated March 22, 2022

In November 2022, the commissioner approved an amendment to the school's Accountability Plan for the 2022- 2026 certificate term. December 2022, the commissioner approved an amendment request to modify the school's instructional methodology and curriculum to include a semi-autonomous independent learning (SAIL) program for a

limited number of students in grades 3-5. The school also sought and received approval for additional technical changes to its certificate. Upon the school's successful renewal, the school updated and revised a number of policies and procedures requiring amendments to the GCVS certificate. In February 2023, the commissioner approved an amendment to the board of trustees' bylaws. In March 2023, the commissioner approved an amendment to the schools Expulsion Policy and Complaint Procedures.

TEC Connections Academy Commonwealth Virtual School

The Education Cooperative (TEC) as the "founder entity" submitted an application for a virtual certificate to the Department of Elementary and Secondary Education (Department) in the spring of 2013; on February 25, 2014, the Board of Elementary and Secondary Education (Board) approved a 3-year operating certificate for TEC Connections Academy Commonwealth Virtual School (TECCA) under the state's virtual school legislation ([Chapter 379 of the Acts of 2012](#)). TECCA opened on July 1, 2014, serving 1,000 students in grades K-12. The school expanded to its original maximum enrollment of 2,000 by the third year of its operation.

The school's board of trustees oversees the superintendent, who oversees the district leadership team. The school district leadership team includes the business manager, human resources, executive assistant to administration, director of assessment, instruction, and professional development, director and assistant director of counseling services, director of special education, assistant director of special education, principal of elementary school, principal of middle school, and principal of high school. The superintendent and school principals share oversight of the general education teachers. The director and assistant director of counseling services share oversight of the school's guidance counselors, family engagement coordinators, social workers, and 504 coordinators. The director of special education oversees special education teachers.

In June and August 2014, the commissioner approved two amendment requests allowing the school to add three new board members to TECCA's board of trustees. Then in November 2015, the commissioner approved an amendment for the school to amend the financial and operational arrangement between TECCA and Connections Education (CE), the entity that provides the school with its LMS, curriculum, and additional services as specified in the contract.

In May 2016, the commissioner approved an amendment for the school to amend its board of trustees' bylaws. Then in September 2016, the commissioner approved an amendment for the school to amend its contract with CE regarding human resources management.

In February 2017, the Board renewed the school's certificate for a five-year term (until June 20, 2022) with conditions requiring the school to submit a detailed plan for ensuring that not less than 95 percent of students participate in the Spring 2017 MCAS tests by March

2017 and submit a detailed plan for serving students who are English language learners by April 2017. TECCA met both conditions by the corresponding deadlines.

In August 2018, the commissioner approved an amendment to increase the school's maximum enrollment by an additional 300 seats, for a new maximum enrollment of 2,300. The Commissioner also approved four additional amendment requests: to amend TECCA's contract with CE, to amend TECCA's mission statement and add two additional pathways (i.e., accelerated, extended programs), and to add a new board member to TECCA's board of trustees.

In November 2019, the commissioner approved an amendment for the school to amend its contract with CE to include accounting (expense reporting, tracking, receivables, facilitating accounts payable excluding any payment to CE), audit support, and provision of Human Resources support during a time of administrative transition.

In January 2020, the interim superintendent created the district leadership team including new leadership positions of director and assistant director of elementary school, director and assistant director of middle and high school, dean of students, 504 coordinator, and registrar. In July 2020, the interim superintendent transitioned to TECCA's new superintendent, replacing the former superintendent who had served in the role since July 2015.

In August 2020, the commissioner approved the school's request to increase its maximum enrollment by an additional 400 seats, for a new maximum of 2,700 in order to meet elevated demand for virtual programming due to the COVID-19 pandemic. The commissioner also approved an amendment for the school to amend its contract with CE to include partner school leadership and strategic account relationship support.

In March 2020, TECCA teachers started negotiations to become an affiliate of the Massachusetts Teacher's Association (MTA). In June 2020 MTA was certified at TECCA and negotiations for a contract continued until September 2021.

On January 20-21, 2021, the Department conducted an Accountability Review of TECCA. The review team issued ratings in the areas of academic program success, organizational viability, and faithfulness to certificate, the guiding principles of virtual school accountability. In February 2021, the commissioner approved the school's requests to amend the school's enrollment policy and to report on a new accountability plan.

In October 2021, the commissioner approved the school's request to increase its maximum enrollment by an additional 300 seats, for a new maximum of 3,000 in order to meet elevated demand for students who are unable to attend to school in-person because of the student's medical condition. That same month, the commissioner approved the school's request to amend its enrollment policy to provide the first order enrollment

preference to students who are unable to attend school in-person because of the student's medical condition.

On August 17, 2021, TECCA requested another contract amendment with Connections Education. The commissioner approved this amendment on August 23, 2021. The amendment removed PSLT Support Services, Pathways programs, and Chromebook technology. The fee schedule was adjusted, reducing substitute teacher fees, monthly fees for students without PSLT, alternative pricing for staff not using laptops, and increasing elective course instruction fees. The school also restructured its leadership team at the elementary, middle, and high school to replace the director and assistant directors with an elementary school principal, middle school principal, and high school principal.

Pursuant to CMR 52.11, and in accordance with the Department's guidelines, on June 9, 2021, TECCA applied to renew its certificate. The Department conducted a renewal inspection on October 9 and November 20, 2021 and the report from this inspection was issued to the school on March 2022. At its March 22, 2022 meeting, in accordance with G.L. c. 71, §94, and 603 CMR 52.00, the Board renewed the certificate of TECCA for an additional four-year period from July 1, 2022 through June 30, 2026 with a maximum enrollment of 3,000 students. Further, pursuant to 603 CMR 52.12, the Board imposed conditions that the school is required to meet as recommended by Commissioner Jeffrey C. Riley in his [memorandum](#) to the Board dated March 22, 2022.

On August 2022, the commissioner approved TECCA's request to amend the contract between TECCA and Connections Education and extend it for an additional year, as the governing board worked to renegotiate a new contract. Upon the school's successful renewal, the school updated and revised a number of policies and procedures requiring amendments to the TECCA certificate. In February 2023, the commissioner approved an amendment to the board of trustees' Bylaws, Complaint Policy, and Accountability Plan for the remainder of its certificate term through 2026. In April 2023, the commissioner approved an amendment to the school's Expulsion Policy.

Fiscal Impact on Sending Districts

The virtual school statute, at G.L. c. 71, § 94(k), funds a CMVS based upon the funding for school choice under G.L. c. 76, § 12B: the school district of residence of each student enrolled in the CMVS is charged a set tuition, and the Department transfers the funds from the district to the CMVS. Tuition is based on full year enrollment and is prorated if a student is enrolled in the CMVS for only a portion of the school year.

The default tuition rate for a student enrolled in a CVMS is the school choice tuition rate of \$5,000.³ The Board, in consultation with the Operational Services Division (OSD), may approve a rate higher than \$5,000 in CMVS certificates provided the rate does not exceed the state average per pupil foundation budget for students of the same classification and grade level. G.L. c. 71, § 94(k); 603 CMR 52.07(1). At its December 7, 2017 meeting, the Board voted to amend the certificates of GCVS and TECCA to specify a tuition rate⁴ of \$8,265 per pupil, effective for FY19, with \$75 per pupil retained by the Department for program administration. Additionally, the Board voted to delegate to the Commissioner authority to adjust this rate annually for inflation for the remainder of the schools' current certificates and amend their certificates accordingly. In March 2022, the Board approved certificates for both CMVS that included the higher rate and continued the Commissioner's authority to adjust the tuition rate annually for inflation. The Board-approved CMVS tuition rate does not change over the course of a fiscal year.

In FY23, the state average per pupil foundation budget was \$14,263⁵. In FY23, districts were charged \$9,259 per full-time pupil enrolled in a CMVS⁶. In FY23, GCVS and TECCA received a per pupil tuition amount of \$9,184, which equals the district per-pupil tuition amount, less \$75 per pupil retained by the Department for program administration, as permitted by statute.

In FY23, the virtual schools received \$41,437,450 in tuition payments from 255 districts of residence. While enrollment varies from district to district, the following four districts accounted for approximately 20 percent of virtual school tuition and enrollment: Boston (7.1% percent) Springfield (5.8 percent), Worcester (4.2 percent), New Bedford (2.7 percent). A summary of FY23 tuition payments is provided in Appendix B.

Course Completion and Student Attendance and Participation Rates

GCVS and TECCA provide 425 instructional hours in kindergarten, 900 hours in grades 1-8, and 990 hours in grades 9-12 in accordance with state regulations.

Both schools offer flexibility in terms of the time of day when students participate. Teachers and "learning coaches" (students' parents/guardians) take attendance and monitor the hours of schoolwork completed. In FY23, GCVS reported an attendance rate of 83.1 percent and TECCA reported an attendance rate of 86.6 percent.

³ The tuition for special education students is the cost of providing the special education required by the student. G.L. c. 71, § 94(k).

⁴ Until December 2017, the CMVS tuition rate remained at \$6,700, less \$75 per pupil retained by the Department (total rate of \$6,625 per pupil paid to each CMVS).

⁵ <https://www.doe.mass.edu/finance/chapter70/profile.xlsx>

⁶ [DOE - GFS - choice22 - All Documents \(sharepoint.com\)](#)

While each school's calendar provides for holidays and vacations during which teachers are not available, students may continue to do schoolwork and access the online learning management system at any time during the school year. Attendance is based on courses completion and not "seat time" – while each school expects all students to complete their coursework by the end of a typical semester or school year, students may proceed through the curriculum at their own pace.

Course completion data for GCVS and TECCA are provided in Tables 1 and 2. Because many students arrive in school after the beginning of the school year or transferred out of the school prior to the end of the school year, course completion data are only reported for students enrolled in the schools for a full academic year, as defined in Table 1.

Table 1: FY23 Course Completion Data, GCVS

FY23 Course Completion Data Greater Commonwealth Virtual School (GCVS)							
Grade	Enrollment	Courses Attempted	Courses Incomplete	Courses Completed	Courses Completed (%)	Courses Passed	Courses Passed (%)
k	25	192	0	192	100%	192	100%
1	37	278	22	256	92%	255	99.6%
2	38	274	13	261	95%	260	99.6%
3	44	308	5	303	98%	289	95%
4	43	319	21	298	93%	293	98%
5	52	378	16	362	96%	357	98.6%
6	72	620	52	568	92%	522	92%
7	69	572	12	560	98%	487	87%
8	105	885	40	845	95%	752	89%
9	111	1081	149	932	86%	727	78%
10	117	1126	88	1038	92%	883	85%
11	135	1390	135	1255	90%	1055	84%
12	141	1426	109	1317	92%	1140	86.5%
Totals:	989	8849	662	8187	94%	7212	92%

Legend:

A	Enrollment	Students enrolled in the CMVS as of October 1 of the prior school year, excluding transfers out and transfers in after October 1.
B	Courses Attempted	Courses in which the students in Column A were enrolled during the school year (full-year and semester-based courses).

C	Courses Incomplete	Courses from which students withdrew, regardless of the grade they earned in the course at the time of course withdrawal.
D	Courses Completed	Courses completed by students, regardless of the grade they earned in the course.
E	Courses Completed (%)	Column D (Courses Completed) ÷ Column B (Courses Attempted)
F	Courses Passed	Courses completed by students in which they earned a passing grade.
G	Courses Passed (%)	Column F (Courses passed) ÷ Column D (Courses Completed)

Table 2: FY23 Course Completion Data, TECCA

FY23 Course Completion Data TEC Connections Academy Commonwealth Virtual School (TECCA)							
Grade	A. Enrollment	B. Courses Attempted	C. Courses Incomplete	D. Courses Completed	E. Courses Completed (%)	F. Courses Passed	G. Courses Passed (%)
K	56	621	0	621	100.00%	604	97.26%
1	63	692	0	692	100.00%	668	96.53%
2	63	688	1	687	99.85%	668	97.23%
3	78	845	1	844	99.88%	799	94.67%
4	98	1097	4	1093	99.64%	1040	95.15%
5	126	1293	8	1285	99.38%	1219	94.86%
6	139	1761	4	1757	99.77%	1529	87.02%
7	201	2528	9	2519	99.64%	2223	88.25%
8	231	3001	6	2995	99.80%	2523	84.24%
9	331	4311	40	4271	99.07%	2848	66.68%
10	336	4284	43	4241	99.00%	3059	72.13%
11	336	4181	44	4137	98.95%	3358	81.17%
12	330	4100	70	4030	98.29%	3556	88.24%
Totals	2388	29402	230	29172	99.22%	24094	82.59%

Legend:

A	Enrollment	Students enrolled in the CMVS as of October 1 of the prior school year, excluding transfers out and transfers in after October 1.
B	Courses Attempted	Courses in which the students in Column A were enrolled during the school year (full-year and semester-based courses).
C	Courses Incomplete	Courses from which students withdrew, regardless of the grade they earned in the course at the time of course withdrawal.
D	Courses Completed	Courses completed by students, regardless of the grade they earned in the course.

E	Courses Completed (%)	Column D (Courses Completed) ÷ Column B (Courses Attempted)
F	Courses Passed	Courses completed by students in which they earned a passing grade.
G	Courses Passed (%)	Column F (Courses passed) ÷ Column D (Courses Completed)

Enrollment Trends, Limits and Waitlists

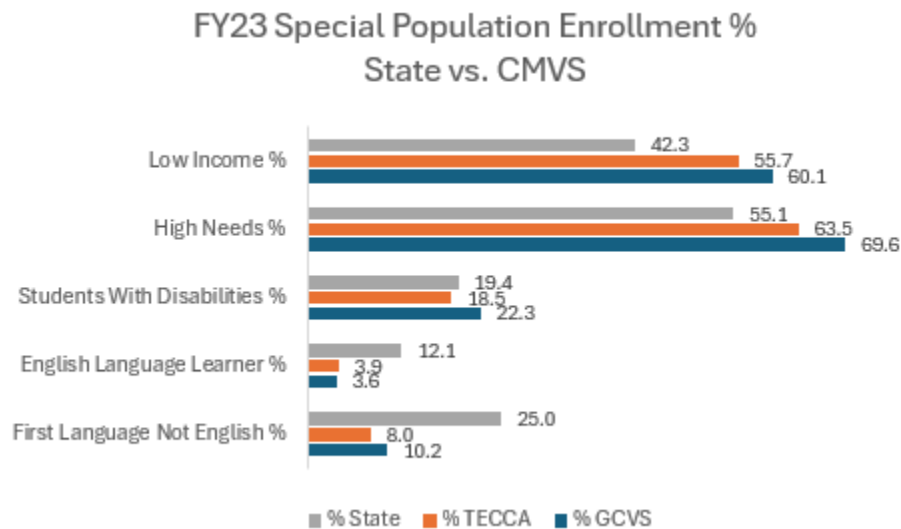
The statute caps the total number of full-time students attending virtual schools at two percent of the total number of students attending all public schools in the Commonwealth. In FY23, 913,735 students attended public schools in the Commonwealth, of which 0.45 percent, or 4,095 students, were enrolled in a CMVS.

School Year	Statewide Enrollment	CMVS Enrollment ⁷	
		#	%
2013-14	955,739	454	0.05
2014-15	955,844	1,087	0.11
2015-16	953,429	1,429	0.15
2016-17	953,748	1,786	0.19
2017-18	954,034	2,123	0.22
2018-19	941,411	2,806	0.30
2019-20	948,828	2,846	0.30
2020-21	911,465	3,457	0.38
2021-22	911,529	3,716	0.41
2022-23	913,735	4,095	0.45

As shown in the graph below, GCVS and TECCA enroll higher percentages of low-income students, high need students, comparable percentages of students with disabilities, and lower percentages of English language learners, and non-native English speakers than statewide averages.⁸

⁷ <http://www.doe.mass.edu/finance/chapter70/profile.xlsx>.

⁸ The “high needs” category includes any student identified as economically disadvantaged, English learners, or students with disabilities.



According to the enrollment policies of both schools, eligibility for enrollment in a specific grade requires a student to have successfully completed the preceding grade. Each school reviews academic documentation to ensure accurate grade level assignments and course placements.

Both TECCA and GCVS reported having greater demand than in past years. Since the emergence of COVID-19 and the subsequent closures of brick-and-mortar schools statewide, families have sought admission to both CMVSs in unprecedented numbers. During the FY23 school year the waitlists for GCVS averaged approximately 167 and TECCA averaged approximately 340 students.

Academic Achievement

The purpose of the statewide accountability system is to provide clear, actionable information about school and district performance. The Department did not issue school, district, or state accountability determinations for the 2019-2020 school year due to the cancellation of state assessments and school closures related to COVID-19. Additionally, the Department did not issue school, district, or state accountability determinations in 2021; spring 2021 MCAS administration included a partial test for grades 3-8 and some grade 3-8 students took the assessment remotely. In 2022, schools administered full MCAS assessments in grades 3-8 and 10. The Department published some, but not all, of the indicators included in the statewide accountability system.

A summary of performance data from 2023 for both schools is provided in Appendix C. More detailed information related to student performance is included in the Department's Profiles, GCVS can be found at [2023 Accountability Data - Greater Commonwealth Virtual](#)

District (39010000) (mass.edu) and TECCA can be found at [2023 Accountability Data - TEC Connections Academy Commonwealth Virtual School District \(39020000\) \(mass.edu\)](#).

CMVS	2023
GCVS	• Federal designation: Requiring Assistance or Intervention ○ Reason for classification: ○ Low graduation rate ○ Low participation rate: 11 student groups and all students • School accountability percentile ○ 20
TECCA	• Federal designation: Requiring Assistance or Intervention ○ Reason for classification: ○ Low graduation rate ○ Low participation rate: 10 student groups and all students • School accountability percentile ○ 18

Supervision and Support for Students in Elementary and Middle School

Much of the responsibility for student learning is placed on the “learning coach,” typically the student’s parent/guardian, particularly in the early grades. Learning coaches facilitate their student’s progress through daily lessons and help manage the student’s schedule and pacing through the online program. Both schools have systems in place for closely monitoring student progress on a course-by-course basis. At GCVS and TECCA, guidance counselors and family engagement coordinators help learning coaches and students adjust to the virtual environment, support students’ nonacademic needs, and create a sense of community through face-to-face and virtual activities.

GCVS reports that at the elementary level (grades K-5), in 2022-23, students received daily full class and small group live instruction in core academic subjects. At the middle school level (grades 6-8) student received 5 live lessons a week in each core academic subject. Art, Music, Physical Education, and Computer electives rotate each quarter and met live once per week. GCVS employs Family Engagement Liaisons (FELs) who provide support and assistance in addition to the support provided by the classroom teachers. Teachers alert the FELs to any individual family concerns who, in turn, work with those families on an individual basis to ensure proper support for students at home. As part of the school structure, GCVS also uses the following supports: Title I and English as a Second Language (ESL) services; Family Engagement; contracts for students with particular needs; Special

Education supports, in person meet-ups, extra help from teachers, dual enrollment with Greenfield Community College, use of GCVS Chromebooks with added security measures.

TECCA reports that students in the elementary, middle, and high school are supported by their homeroom teachers and subject teachers, in addition to the supervision provided by the learning coach. Homeroom teachers are responsible for biweekly contact with each of their students, and during these calls, the teachers review the student's overall progress in lessons and assignments, often with the learning coach present as well, depending on the grade level of the student. Subject teachers monitor student progress on a regular basis and analyze student performance on assessments so they can differentiate instruction, provide support to students in a small group or 1:1, as well as provide resources to support struggling students. In addition, the learning coach, who is often the student's caretaker, facilitates their student's progress and helps manage the student's schedule, attendance, pacing through the online program, and provides outreach to teachers when help is needed. TECCA has additional support staff who also work to support all students to adjust to the virtual environment, support students' both academic and non-academic needs, and assist in creating a sense of community through other face-to-face and virtual interactions and activities.

Support for Online Course Completion

As indicated above, both GCVS and TECCA, a "learning coach," typically the student's parent/guardian, facilitates student progress through daily lessons, with flexibility in terms of pace and scheduling. The schools expect learning coaches to spend three to five hours daily supporting students and students to spend five to six hours daily on schoolwork and homework. Teachers are expected to manage all facets of the student's instructional experience and engage in regular communication with learning coaches and students via email, telephone, and online meetings. Further, both schools arrange face-to-face activities, such as field trips, throughout the school year.

GCVS

In 2022-23, GCVS supported its students in both the live and asynchronous platforms. All live sessions are recorded so that students can access them at any time. Teachers also schedule small group and individual intervention sessions as needed throughout the week, which may be recorded. Throughout the class, teachers constantly monitor a chat area, virtual whiteboard area where both students and teachers can post items, and verbal interaction via microphones or headsets. Break-out rooms can be created for individual or small groups of students during the live session to allow for differentiated instruction/assignments as needed. In terms of the GCVS "flex" (asynchronous) courses there are staff dedicated to supporting students in the asynchronous program, ESL staff work to monitor and shelter material, and the school provides a summer extension time.

The school also used ESSER funds to hire over 30 tutors to support students at all grade levels and in both the live and async platforms.

In FY23, there were three full time Title I teachers and one paraprofessional. In addition to providing support for students performing below grade level, the high school Title I math teacher worked with the math team to develop and run Math Essentials courses, as well as an MCAS prep class. GCVS special education teachers support students with IEPs. Two English Learner (EL) teachers provided supports to students whose first language is not English. All general and special education teachers are either Sheltered English Immersion (SEI) endorsed or in the process of obtaining it, which enables them to support ELs in the regular classroom. Students who require accommodation under Section 504 have their assignments and curriculum modified by classroom teachers, as necessary, although many students enrolling with 504 plans found that the District Curriculum Accommodation Plan (DCAP) was sufficient to meet their needs. Students are identified for interventions and/or services are referred to the Tiered System of Support process, monitored by the three assistant principals and the Family Engagement Team.

TECCA

For 2022-23, TECCA reported that staff work to ensure families/students are aware of all expectations for high-quality online learning outcomes. Once enrolled, all students/families receive a welcome call typically within five school days by a homeroom teacher to ensure students/families begin the year with personal connection to a teacher, set up regular bi-weekly supportive contact for the student, and to begin establishing an understanding of the expectations both students and families will need to meet as the year progresses.

TECCA also reports that it has a technical support system available to students and families who may be experiencing technical difficulties impeding their access to the school and course materials. Students, caretakers, and learning coaches have access to technical (hardware, software, and Connexus) support services from both Connections Education (TECCA's contracted partner) personnel and by TECCA faculty and staff. Students, caretakers, and learning coaches have access to our extensive technical support services via webmail and email 24 hours a day, 7 days a week, and can call into the helpdesk.

Additionally, TECCA has the role of student success coach in the middle and high schools to monitor a variety of student metrics, including academic performance, attendance, and course completion status. Student success coaches work directly with a group of homeroom students and complete a biweekly check in calls/meetings. In addition to student success coaches, general education teachers, guidance counselors, social workers, special education teachers, and virtual counselors, also monitor and support students who may require an additional layer of support and/or service. At the elementary level, grade level teachers or special education case managers act as homeroom teachers and perform these same responsibilities.

TECCA also has a family engagement coordinator for students who are struggling to meet engagement and attendance expectations. The staff work with both the student and the learning coach to create an academic plan in which the student/family sets goals and tracks progress toward meeting those goals.

To support teachers and help to identify any gaps in completion or engagement, the District Leadership Team (DLT) met biweekly to review and discuss at-risk students. School leaders then used this information in their biweekly touch bases with their individual staff members to ensure that all students were receiving the support they needed. The DLT uses metrics to plan for upcoming professional development and ensure teachers had the resources and tools they needed to best engage students in learning.

Professional Development

According to GCVS, teachers met on a regular basis throughout the 2022-2023 school year. GCVS continued to hold full faculty meetings and/or team meetings by grade cluster to discuss data and share instructional strategies. GCVS created Professional Learning Communities (PLSs) to map the core curriculum. GCVS's instructional leadership team met every other week. GCVS created time for special education teachers and general education teachers to collaborate multiple times a week.

GCVS began the 2022-23 school year with four days of Professional Development in which the entire staff participates in presentations. Topics included: the evaluation process and school goals; co-teaching and inclusive practices; teaching students with IEPs and 504 plans: review of regulations and processes; and specific technical tools and programs used by GCVS. Throughout the year, GCVS also provided content- and department-specific learning opportunities, such as training in the new ESL monitoring software.

TECCA reported multiple professional developmental opportunities for its faculty and staff. Professional development topics included: New Staff Orientation, Mentoring and Induction; Special Populations Support and Differentiation; Power BI; Center for Behavioral Health, Equity and Leadership in Schools (BEHLS) Leadership Learning Team (LLT) Leadership Development and Coaching; BEHLS Teacher Leadership Professional Development; MCAS and STAR Trainings; Youth Mental Health First Aid; Book Studies; Supporting Multilingual Students Across the Content Areas; and Advisory.

Recommended Changes to the Commonwealth Virtual School Program

In FY20, the Department engaged consultants to help update the Commonwealth Virtual School Performance Criteria (Criteria). The Criteria were first developed in 2014 and

required updates. During the fall of 2019, the Department began a substantial review and revision process to update these Criteria to incorporate national best practices and standards for virtual school performance. By November 2022, the Department published the Criteria, which is in effect during the CMVS' current certificate terms (2022 through 2026).

Pursuant to the virtual school statute, G.L. c. 71, § 94(j), and the CMVS regulations at 603 CMR 52.11, on March 22, 2022, the Board of Elementary and Secondary Education (Board) renewed the certificates for GCVS and TECCA for an additional four years. The Commissioner recommended, and the Board also voted to place conditions⁹ on the schools' certificates to address concerns related to academic performance and governance issues.

Using quantitative and qualitative evidence, the Department evaluated the performance of both CMVSs against the statutory requirements for renewal¹⁰ and the [Commonwealth Virtual School Performance Criteria](#). Based on evidence gathered, neither school was found to have fully delivered on the promises of its mission. In determining conditions, the Commissioner of Elementary and Secondary Education carefully considered each school's history, each school's student population, the limited accountability data due to the pandemic, and the track record of virtual schools in Massachusetts and nationwide. Key considerations follow.

Focus group interviews with families of CMVS students demonstrate continued demand for a virtual option because it benefits students with unique circumstances. Evidence provided by families indicates that CMVSs provide a safe educational option for students with social and emotional needs, students who experienced bullying in traditional public schools, students with chronic medical conditions that make consistent attendance in-person difficult, and academically or athletically gifted students who desire more flexible programming. As noted in the table below, both GCVS and TECCA enroll students with disabilities/504 plans and low-income students at rates above state averages. Additionally, both CMVS enroll English learners at rates below state averages.

	Students with disabilities	Students with 504 plans	Students who are low income	English learners
% of GCVS	22.5	7.0	57.7	1.7
% of TECCA	20.6	9.0	54.0	1.4
% of State	18.9	5.0	43.8	11.0

⁹ Pursuant to 603 CMR 52.12(1), the "Board or Commissioner may impose conditions on a virtual school's certificate for violations of law, failure to improve student achievement, failure to comply with the terms of the virtual school's certificate, or failure to remain viable."

¹⁰ "When deciding on certificate renewal, the board shall consider progress made in student academic achievement and whether the school has met its obligations and commitments under the certificate." G.L. c. 71, §94(j).

Neither school's results have consistently met academic standards set by the statewide accountability system. Despite coordinating testing locations across the state each year, both schools have struggled to meet the state assessment participation levels required by law, both schools produce results that are well below state averages,¹¹ and both schools have been identified as performing in the lowest percentile levels across the state. Results of these two virtual schools are similar to the academic results seen in virtual schools nationwide.¹² Further, the COVID-19 pandemic forced changes to MCAS administrations in 2020 and 2021; these changes created a lack of academic data making it difficult to assess academic progress during the schools' current certificate term. Renewing the schools' certificates with conditions that clearly outline areas for improvement or correction gives both schools additional time to demonstrate academic improvement and retains the Board's ability to impose probation should the school's performance worsen.

For detailed information on the conditions placed on each certificate see the [March 14, 2022 memorandum](#) from the Commissioner of Elementary and Secondary Education to the Board of Elementary and Secondary Education.

During the 2022-23 school year, both GCVS and TECCA submitted evidence to the Department to demonstrate progress towards meeting these conditions. Also, upon renewal, the Department worked with both schools to revise and refine key organizational policies (e.g. boards of trustees' bylaws, enrollment policies, accountability plans). Establishing and refreshing robust policies and procedures, can help each CMVS achieve more efficiency, consistency, and overall effectiveness, laying the groundwork for long-term sustainability and success. In addition, the Department continues to collaborate with others on a regional and national level to identify the best ways to support high-quality virtual educational programs, curriculum, and instructional practices.

¹¹ Student achievement rates at TECCA in 2021 exceeded or were comparable to state averages; students in grades 3 through 8 took modified MCAS examinations and virtual testing was allowed.

¹² "Virtual Schools in the U.S. 2021" from the National Education Policy Center can be found at <https://nepc.colorado.edu/publication/virtual-schools-annual-2021>.

Appendix A: CMVS (G.L. c. 71 §94)

Section 94. (a) As used in this section the following words shall, unless the context clearly requires otherwise, have the following meanings: —

“Board,” the board of elementary and secondary education.

“Commissioner”, the commissioner of elementary and secondary education.

“Commonwealth virtual school”, a public school operated by a board of trustees whose teachers primarily teach from a remote location using the internet or other computer-based methods and whose students are not required to be located at the physical premises of the school.

“Certificate”, a certificate of organization issued by the board to a commonwealth virtual school’s board of trustees which governs the operations of the commonwealth virtual school.

“Department”, the department of elementary and secondary education.

“District” or “school district”, the school department of a city, town, regional school district or county agricultural school.

“Education collaborative,” an association of 2 or more school committees or boards of trustees of charter schools established pursuant to section 4E of chapter 40.

(b) On or before October 1, the board shall issue a request for proposals to establish 1 or more commonwealth virtual schools; provided, however, that the board shall not be required to issue a request for proposals for any school year for which a certificate is not available to be awarded. The request for proposals shall be published on the department’s website. Persons or entities eligible to submit a proposal to establish a commonwealth virtual school shall include, but not be limited to: (i) a school district; (ii) 2 or more school districts; (iii) an education collaborative; (iv) an institution of higher education; (v) a non-profit entity; (vi) 2 or more certified teachers; or (vii) parents. Private and parochial schools and for-profit entities shall not be eligible to submit a proposal. A proposal shall be selected from the responses to the request for proposals and an applicant awarded a certificate under the procedures adopted by the board. The request for proposals shall include, but not be limited to, the following terms and conditions that shall be addressed in each response to the request for proposals and, upon selection by the board, shall be incorporated into the certificate to operate a commonwealth virtual school:

(1) the mission, purpose and specialized focus, if any, of the proposed commonwealth virtual school;

(2) the educational program, instructional methodology and services to be offered to students;

(3) the organization of the school by ages of students or grades to be taught and an estimate of the total enrollment of the commonwealth virtual school;

(4) the method for and timetable of admission to the commonwealth virtual school;

(5) the commonwealth virtual school governance and by-laws;

(6) the proposed school year;

- (7) how the commonwealth virtual school shall administer state required assessment tests;
- (8) a statement of equal educational opportunity which shall state that the commonwealth virtual school shall be open to all students, on a space available basis, and shall not discriminate on the basis of race, color, national origin, religion, sex, gender identity or sexual orientation;
- (9) a description of any preferences the school shall give for enrollment and how the school shall conduct a lottery for admission if applications exceed enrollment capacity;
- (10) the identity of any third party software or curriculum vendors that the school intends to use;
- (11) a proposed arrangement or contract with an organization that shall manage or operate the school, including any proposed or agreed upon payments to such organization;
- (12) a demonstration of the applicant's capacity to support and store all critical student, program and staff data for expedient retrieval and analysis in compliance with federal and state laws;
- (13) provisions for cyber safety;
- (14) how the school shall notify each school district in writing of the number and grade levels of students who shall be attending the commonwealth virtual school from that district within 10 days of the student registering for enrollment in the commonwealth virtual school;
- (15) whether the commonwealth virtual school will offer online courses to students attending other schools;
- (16) the financial plan for the operation of the school;
- (17) the number and qualifications of teachers and administrators to be employed;
- (18) the procedures for evaluation and professional development for teachers and administrators, including what training, if any, shall be provided to teachers who have not previously taught online;
- (19) the school's capacity to address the particular needs of English language learners to learn English and learn content matter;
- (20) the school's plan to conduct outreach to prospective students;
- (21) what supports shall be provided to students to help them complete courses, including the school's strategies for ensuring that an enrolled student shall complete the program and goals regarding course completion and student achievement;
- (22) how the school will monitor student progress in order to identify areas of difficulty and assist students who need additional attention;
- (23) where relevant, what supports will be provided to help students prepare for college and careers;
- (24) the school's capacity to support students' social and emotional growth;
- (25) how the school shall create a community for students who are enrolled in the commonwealth virtual school;

- (26) how the commonwealth virtual school applicant shall include activities to engage students;
- (27) what, if any, in person activities, learning or interaction will be provided or offered, including extra-curricular activities;
- (28) expectations for age appropriate supervision of students under the age of 14, if applicable;
- (29) a description of where students will access the school's courses, including whether it is in the home or in a location provided and overseen by the commonwealth virtual school applicant;
- (30) methods to assure that all students shall have access to necessary technology and materials;
- (31) what technical support shall be available to students, including whether the commonwealth virtual school applicant shall offer an orientation for taking an online course before starting the coursework;
- (32) how the school shall define and monitor student attendance, including how it shall verify that each student is participating in classes, how truancy shall be addressed and goals regarding student attendance;
- (33) expectations and goals for communication between teachers and students and how such interaction shall be documented;
- (34) how the school shall involve parents and guardians as partners in the education of the children and goals for parental and family engagement;
- (35) the school's capacity to implement the proposal and provide high quality instructional services;
- (36) the school's capacity to instruct students in the following categories, if the school intends to serve any such students: (i) students with physical or other challenges that make it difficult for them to physically attend a school; (ii) students with medical needs requiring a home or hospital setting; (iii) students with unusual needs requiring a flexible schedule; (iv) students who are over-age for their grade; (v) students who have been expelled; (vi) students who have dropped out or are at risk of dropping out; (vii) students who are pregnant or have a child; (viii) students with social and emotional challenges that make it difficult for them to physically attend a school; (ix) students who feel bullied or cannot attend school because their safety is at risk; (x) gifted and talented students; (xi) students who seek academic work not available in their school; (xii) students in rural communities; and (xiii) students in institutionalized settings;
- (37) whether the school proposes a mechanism to provide meals to students eligible for free and reduced price lunch;
- (38) the student to teacher ratio; and
- (39) whether the school will establish a personalized learning plan for each student, in conjunction with the student's school district of residence.
- (c) The board shall make the final determination on selecting proposals; provided, however, that the board shall only grant a certificate to a qualified applicant as determined by the board; provided further, that the board shall hold a public hearing on the proposals which shall be attended by at least 1 member of the board. Not more than 10 commonwealth virtual schools shall be allowed to operate in the commonwealth at any time; provided, however, that a commonwealth virtual school operated by a single school district, under an agreement entered into by more than 1 school district or by an education collaborative shall not be counted towards this limit if the commonwealth virtual school only enrolls students who reside in the school district,

in the school districts that signed the agreement or in the school districts that are members of an education collaborative. The board may authorize a single board of trustees to manage more than 1 commonwealth virtual school; provided, however, that each school is issued its own certificate. Under no circumstances shall the total number of full-time students attending commonwealth virtual schools exceed 2 per cent of the total number of students attending public schools in the commonwealth. In the case of a commonwealth virtual school that is established by a school district, not less than 5 per cent of the students enrolled in the commonwealth virtual school shall be from the school district that established the school. In the case of a commonwealth virtual school that is established by more than 1 school district or by an education collaborative, not less than 5 per cent of the students enrolled in the school shall be from the combined enrollment of the districts that established the school or the districts that are members of the education collaborative.

The board shall give preference to proposals that include an educational program or specialized focus that appropriately addresses 1 or more of the following: students with physical or other challenges that make it difficult for them to physically attend a school; students with medical needs requiring a home or hospital setting; students with unusual needs requiring a flexible schedule; students who are over-age for their grade; students who have been expelled; students who have dropped out; students at risk of dropping out; students who are pregnant or have a child; students with social and emotional challenges that make it difficult for them to physically attend a school; students who feel bullied or cannot attend school because the students' safety is at risk; gifted and talented students; students who seek academic work not available in their school; students in rural communities; and students in institutionalized settings. The board shall also consider whether proposed schools will create or enhance the opportunity for students to attend virtual schools in all grades from kindergarten through grade 12.

(d) A commonwealth virtual school shall operate under a certificate issued by the board and be governed by a board of trustees. If a district or education collaborative operates the commonwealth virtual school, then the board of trustees shall be appointed by the member school committees of the district or the collaborative board. The board of trustees of a commonwealth virtual school, upon being granted a certificate, shall be deemed to be a public agent authorized by the commonwealth to supervise and control the commonwealth virtual school. A commonwealth virtual school shall be deemed to be a state agency under chapter 268A and members of the board of trustees shall be deemed to be public employees under chapter 268B.

(e) The board of trustees of a commonwealth virtual school shall have all powers necessary or desirable for carrying out its virtual program, including, but not limited to, the power to:

(1) adopt a name and corporate seal; provided, that any name selected shall include the words "commonwealth virtual school";

(2) acquire real property, from public or private sources, by lease, lease with an option to purchase or by gift, for use as a school facility;

(3) receive and disburse funds for school purposes;

(4) incur temporary debt in anticipation of receipt of funds; provided that, notwithstanding any general or special law to the contrary, the terms of repayment of any commonwealth virtual school's debt shall not exceed the duration of the school's certificate without the approval of the board;

(5) solicit and accept grants or gifts for school purposes; and

(6) determine the school's curriculum and develop the school's annual budget.

(f) A commonwealth virtual school may provide access to its courses in an existing public school building or any other suitable location; provided, however, that a commonwealth virtual school shall comply with all applicable state and federal health and safety laws and regulations.

(g) The board may waive requirements that students who attend a commonwealth virtual school, attend school for a minimum number of hours or days each school year and may permit students to earn credits by demonstrating competency in a grade or subject matter. Students in commonwealth virtual schools shall be required to meet the same academic standards, testing and portfolio requirements set by the board for students in other public schools.

To ensure that students are learning and demonstrating their knowledge, each commonwealth virtual school shall ensure that students are provided, in each credit-bearing course, multiple synchronous learning opportunities with their teachers in which students are required to participate and share their knowledge.

(h) Commonwealth virtual schools shall comply with chapter 71B; provided, however, that the fiscal responsibility for a student with a disability enrolled in or determined to require a private day or residential school shall remain with the school district where the student resides. If a commonwealth virtual school expects that a student with a disability enrolled in the commonwealth virtual school may be in need of the services of a private day or residential school, it shall convene an individualized education program team meeting for the student. Notice of the team meeting shall be provided to the special education department of the school district in which the child resides at least 5 days in advance. Personnel from the school district in which the child resides shall participate in the team meeting concerning future placement of and services for the child and shall agree on the needed services for the child.

(i) No teacher shall be hired by a commonwealth virtual school who is not certified pursuant to section 38G. Nothing herein shall preclude such teacher from using digital content which may include, but not be limited to, guest lecturers.

(j) A certificate to operate a commonwealth virtual school granted by the board shall be for not less than 3 years and not more than 5 years, as determined by the board. The board shall develop procedures and guidelines for amending, revoking and renewing a virtual school's certificate. When deciding on certificate renewal, the board shall consider progress made in student academic achievement and whether the school has met its obligations and commitments under the certificate.

(k) The amount of tuition per pupil a school district shall pay for a student residing in the district who is enrolled in a commonwealth virtual school shall be the school choice tuition amount, which shall be paid through the school choice mechanism; provided, that the department may, in consultation with the operational services division, approve alternative tuition amounts proposed by applicants that shall not exceed the state average per pupil foundation budget for students of the same classification and grade level; provided, further, that the department may authorize additional tuition assessments for services required by an individualized education program established pursuant to chapter 71B. If a commonwealth virtual school offers online courses to students attending other schools, the commonwealth virtual school shall work with the student's district or school to determine whether the online courses meet said district's or school's standards and requirements and what the commonwealth virtual school will charge the student's district or school for such online courses.

The department may retain not more than \$75 per pupil for the administration of the commonwealth virtual school program.

The department, in consultation with the department of youth services, shall determine the appropriate tuition responsibility for students who are in the custody of the department of corrections, a sheriff or the department of youth services.

Students enrolled in a commonwealth virtual school shall be counted in the foundation enrollment of the school district where the student resides.

(l) The department shall promulgate rules and regulations creating a reporting requirement for a commonwealth virtual school's net asset balance at the end of each fiscal year; provided, however, that the report shall include, but not be limited to: (1) the revenue and expenditures for the prior fiscal year with a specific accounting of the uses of public and private dollars; (2) compensation and benefits for teachers, staff, administrators, executives and members of the board of trustees; (3) the amount of funds paid to a management company; (4) the sources of surplus funds, specifically whether the funds are private or public; (5) how surplus funds were used in the previous fiscal year; and (6) the planned use of surplus funds in the upcoming fiscal year and in future fiscal years. The board may establish limits for excess funds that may be retained by commonwealth virtual schools and may require commonwealth virtual schools to return excess funds to school districts.

(m) Each commonwealth virtual school shall submit an annual report, on or before January 1, to the board. The school shall make its report available to the public on its website. The annual report shall be in such form as may be prescribed by the board and shall include, but not be limited to: (1) a discussion of progress made toward the achievement of the goals set forth in the certificate; (2) a list of the programs and courses offered; (3) a description and number of the students enrolled in the commonwealth virtual school by grade level, the number of students eligible for free and reduced price lunch and the number of students who applied and were not admitted; (4) a financial statement describing by appropriate categories the revenue and expenditures for the prior fiscal year and a balance sheet describing the commonwealth virtual school's assets, liabilities and fund balances or equities; (5) information regarding and a discussion of student attendance and participation; (6) information regarding and a discussion of student-teacher interaction; (7) information regarding and a discussion of student performance in the commonwealth virtual school, including data from state assessments and a comparison of students' achievement against the achievement of the students in the sending district; (8) a discussion of how many courses were completed and not completed; (9) a discussion of how the school created a community for students; (10) what activities were included to engage students and how students participated in those activities; (11) a discussion of parental involvement; and (12) a discussion of the school's outreach and recruitment efforts; provided, however, that said report shall include input from teachers and administrators at the virtual school and input from administrators in a district that has established a virtual school or districts that are members of an education collaborative that has established a virtual school.

(n) Each commonwealth virtual school shall maintain an accurate account of all its activities and all its receipts and expenditures and shall annually conduct an independent audit of its accounts. Such audit shall be filed annually on or before January 1 with the department and the state auditor and shall be in a form prescribed by the state auditor. The state auditor may investigate the budget and finances of commonwealth virtual schools and their financial dealings, transactions and relationships and shall have the power to examine the records of commonwealth virtual schools and to prescribe methods of accounting and the rendering of periodic reports.

(o) On or before September 1, the commissioner shall furnish a supplemental report on the Massachusetts comprehensive assessment system performance results of students served by each commonwealth virtual school and on the racial, ethnic and socio-economic make-up of the students served by each commonwealth virtual school. The commissioner shall also provide information on the number of students enrolled in each commonwealth virtual school who have individualized education programs pursuant to chapter 71B. The department shall make such report available to the public on the department's website.

(p) On or before September 1, the commissioner shall prepare a report on the implementation and impact of this section, including, but not limited to:

- (1) the fiscal impact on sending districts;
- (2) any necessary adjustments to tuition rates, including whether the amount should vary based on grade or type of school and the appropriate mechanism for funding virtual schools;
- (3) information on course completion and student attendance and participation rates;
- (4) the academic achievement of students attending commonwealth virtual schools;
- (5) the level of supervision or support needed for students in elementary and middle school;
- (6) the support necessary or helpful to ensure that students successfully complete online courses;
- (7) the professional development virtual schoolteachers require;
- (8) the appropriate enrollment limit for a virtual school, if any, including information about wait lists; and
- (9) the need for any changes to the commonwealth virtual school program.

The report shall be based partially on information in each commonwealth virtual school's annual report and financial audits. This report shall include input from virtual schoolteachers and administrators. The commissioner shall consult with the digital learning advisory council to prepare this report. The commissioner shall file the report with the clerks of the house and senate, who shall forward the report to the joint committee on education. The department shall make the report available to the public on the department's website.

(q) The commissioner shall identify and offer information on online courses which are aligned with state academic standards that districts may use and shall publish that list on the department's website. At least 1 of the online courses listed shall be available at no cost to school districts, provided that such no cost online course is aligned with state academic standards. The list shall be reviewed and updated annually. Nothing in this subsection shall preclude school districts from using other courses not identified by the commissioner.

(r) The board may promulgate regulations for implementation and enforcement of this section, provided that the regulations may include, but shall not be limited to, a provision indicating the appropriate percentage of online academic instruction provided for a school to be considered a commonwealth virtual school pursuant to this section. Upon release of the proposed regulations, the board shall file a copy of the regulations with the clerks of the house of representatives and the senate, who shall forward the regulations to the joint committee on education. Within 30 days of the filing, the committee may hold a public hearing and issue a report on the regulations and file the report with the board. The board, pursuant to applicable law, may adopt final regulations making revisions to the proposed regulations as it deems appropriate after consideration of the report and shall file a copy of the regulations with the chairpersons of the joint committee on education and, not earlier than 30 days after the filing, the board shall file the final regulations with the state secretary.

(s) Nothing in this section shall preclude a student from taking some or all of the student's classes online when such classes are offered or approved by the school the student attends or by an education collaborative in which the student's school district participates.

This section shall not apply to a virtual school operated by a single school district if the school enrolls only students residing in the school district; provided, however, that such district shall submit a summary description of the proposed virtual school to the commissioner for review and comment at least 4 months in advance of the opening of the virtual school. The commissioner shall then provide written comments on the proposal to each district's school committee.

(t) A school committee may, by vote, restrict enrollment of its students in commonwealth virtual schools if the total enrollment of its students in commonwealth virtual schools exceeds 1 per cent of the total enrollment in its district; provided, however, that no student enrolled in a commonwealth virtual school shall be compelled to withdraw as a result of that vote.

Appendix B: CMVS Tuition by Sending District, FY23¹³

Sorted by FY23 FTE CMVS enrollment.

Sending District	FTE	Tuition
Boston	290.3	\$2,950,679
Springfield	233.8	2,397,379
Worcester	169.1	1,735,978
New Bedford	111.9	1,114,399
Chicopee	98.2	965,155
Fall River	94.4	940,028
Lynn	81.6	796,222
Lowell	72.9	743,663
Fitchburg	54.2	555,132
Holyoke	51.2	545,992
Taunton	51.9	496,895
Haverhill	49.7	491,761
Lawrence	44.6	462,607
Framingham	46.9	458,855
Brockton	42.7	422,248
Saugus	39.3	384,339
Methuen	38.1	370,282
Westfield	33.8	348,038
Plymouth	33.9	343,618
Shrewsbury	35.4	341,541
Pittsfield	35.6	340,262
Randolph	33.4	336,533
Agawam	31.0	328,631
Barnstable	32.8	322,451
Marlborough	31.4	317,924
Medford	29.8	316,364
Everett	32.4	316,169
Quincy	29.8	298,323
Leominster	28.4	293,913
Watertown	28.5	274,259
Wachusett	27.7	266,303
Dracut	26.3	261,044
Ludlow	25.8	257,746
Franklin	26.3	252,120

¹³ [choice-tuition2023.xlsx \(live.com\)](#)

Waltham	24.8	250,107
Weymouth	24.6	249,241
North Attleborough	25.5	249,082
Revere	26.2	249,059
Dartmouth	26.0	248,866
Hampden-Wilbraham	24.4	241,966
Woburn	24.7	239,337
North Adams	22.4	237,181
Gardner	22.9	236,786
Webster	23.6	231,995
Bridgewater-Raynham	24.4	230,177
Malden	23.9	223,523
Freetown-Lakeville	23.1	223,221
Northampton	22.4	220,520
Middleborough	20.7	216,520
Milford	22.4	212,267
Stoughton	20.6	207,831
Attleboro	21.1	205,170
Dudley-Charlton Reg	19.8	203,860
Billerica	20.8	203,151
Braintree	19.6	194,128
Greenfield	20.3	192,936
Easthampton	17.8	190,857
Mansfield	18.3	189,405
Tantasqua	14.6	181,666
North Middlesex	17.8	178,140
Norwood	17.0	177,655
Gloucester	17.3	175,056
Ashburnham-Westminster	17.8	174,580
Wareham	16.6	172,166
Quabbin	15.4	171,779
Danvers	15.7	168,030
Foxborough	16.4	168,014
East Longmeadow	16.7	164,681
Beverly	16.5	163,840
Falmouth	14.8	159,703
Salem	15.9	159,119
Dennis-Yarmouth	15.4	158,857
West Springfield	15.7	158,349
Southbridge	15.4	155,888
Melrose	16.7	155,881
Easton	16.5	155,523

Northbridge	15.3	154,599
Chelsea	15.3	153,761
South Hadley	15.9	153,178
Burlington	15.9	152,549
Nauset	14.9	149,701
Central Berkshire	15.9	149,342
Westborough	15.1	146,537
King Philip	15.6	145,252
Triton	15.2	143,881
Andover	14.0	138,814
Mashpee	14.2	138,693
Swansea	14.1	137,593
Ware	12.0	134,127
Whitman-Hanson	11.8	132,655
Sharon	13.7	132,261
Bellingham	13.9	130,942
East Bridgewater	12.7	127,695
Walpole	13.1	126,238
Tyngsborough	12.5	125,464
Westport	13.1	125,026
Tewksbury	12.2	123,241
Oxford	12.4	122,970
North Andover	12.4	121,050
Hudson	12.3	118,500
Newton	12.7	118,487
Reading	12.6	118,171
Grafton	11.6	117,683
Arlington	11.1	117,676
Canton	11.3	114,228
Sandwich	12.2	113,934
Winchendon	11.3	113,499
Dighton-Rehoboth	11.9	111,275
Cambridge	11.2	111,202
Gill-Montague	10.6	111,171
Quaboag Regional	11.6	109,909
Dedham	11.6	109,832
Abington	11.6	109,332
Marshfield	11.2	109,138
Swampscott	10.3	107,260
Millbury	11.4	106,830
Northboro-Southboro	10.7	106,574
Amesbury	11.3	105,800

Peabody	10.9	104,390
Uxbridge	10.8	104,373
Athol-Royalston	9.6	103,363
Blackstone-Millville	10.2	102,467
Chelmsford	9.9	100,517
Leicester	9.8	99,953
Lexington	10.2	99,865
Holbrook	10.3	98,361
Natick	10.3	98,340
Monomoy Regional School District	9.1	97,854
Pembroke	9.7	95,854
Westwood	9.0	94,861
Wilmington	10.1	93,899
Ayer Shirley School District	9.3	92,461
Groton-Dunstable	10.0	91,840
Lunenburg	8.6	89,303
Belchertown	9.2	88,505
Fairhaven	8.7	88,441
Somerville	9.6	88,074
Amherst-Pelham	8.7	87,413
Mount Greylock	7.9	85,325
Ralph C Mahar	8.5	84,898
Seekonk	8.4	82,357
Narragansett	8.9	81,645
Palmer	8.0	80,976
Hampshire	8.4	77,329
Somerset Berkley Regional School District	7.7	76,988
Wakefield	7.4	76,281
Bourne	7.8	75,368
Maynard	7.4	74,462
Westford	7.4	74,336
Brookline	6.8	73,666
Newburyport	7.1	73,195
Stoneham	7.0	72,837
Masconomet	6.9	72,197
Needham	7.4	71,163
Auburn	7.2	69,580
Sutton	6.6	69,501
Norwell	4.4	68,528
Norton	7.3	67,319
Douglas	7.2	67,021
Georgetown	7.2	66,308

North Reading	7.0	65,339
Old Rochester	7.0	64,471
West Bridgewater	6.8	63,943
Nashoba	6.2	63,613
Ashland	5.9	63,507
Milton	6.5	62,440
Gateway	6.6	62,092
Longmeadow	6.0	61,415
Belmont	6.6	61,358
Marblehead	6.4	60,798
Acushnet	5.8	60,708
Rockland	6.3	60,080
Hamilton-Wenham	5.6	56,791
Frontier	5.9	56,762
Kingston	6.2	56,574
Hopedale	5.0	54,940
Pentucket	4.9	54,572
Hoosac Valley Regional	5.3	54,534
Southwick-Tolland-Granville Regional School District	5.6	54,261
Acton-Boxborough	5.5	54,164
Holliston	4.9	54,097
Lynnfield	5.0	51,677
West Boylston	5.3	50,776
Pioneer Valley	4.9	48,137
Silver Lake	5.2	47,757
Granby	4.8	46,995
Hingham	4.7	46,874
Wellesley	4.9	46,494
Southern Berkshire	4.8	46,343
Littleton	4.1	45,557
Amherst	4.8	43,808
Clinton	4.5	42,940
Winchester	4.5	41,690
Mendon-Upton	4.4	40,711
Millis	4.3	40,273
Spencer-E Brookfield	4.4	40,226
North Brookfield	4.0	39,749
Holland	3.9	37,205
Berlin-Boylston	4.0	36,920
Monson	3.9	36,747
Nantucket	3.9	36,001

Plainville	3.9	35,909
Avon	3.0	35,671
Mohawk Trail	3.4	35,514
Hadley	3.0	34,746
Berkshire Hills	3.1	34,220
Winthrop	3.6	34,093
Richmond	3.5	31,960
Hopkinton	3.0	31,719
Somerset	3.1	30,763
Hatfield	3.0	30,158
Erving	3.0	29,403
Middleton	3.2	28,930
Orange	3.1	28,838
Northborough	2.5	28,196
Rockport	2.8	28,174
Lincoln	3.0	27,552
Scituate	2.5	26,581
Southborough	2.9	26,450
Lenox	2.8	26,082
Cohasset	2.8	26,028
Ipswich	2.4	25,622
Dover-Sherborn	2.0	25,151
Medfield	2.5	23,236
Lee	2.5	22,960
Medway	2.4	21,767
Hanover	2.4	21,766
Savoy	2.0	20,584
Manchester Essex Regional	1.9	20,467
Farmington River Reg	2.0	20,032
Bedford	2.0	19,757
Concord	2.1	19,470
Lincoln-Sudbury	2.0	19,360
Berkley	2.0	18,368
Harvard	2.0	18,368
Sudbury	2.0	18,368
Sunderland	2.0	18,368
Hull	1.7	15,980
Carver	1.3	11,664
Duxbury	1.0	10,249
Wayland	1.1	10,102
Petersham	1.1	9,736
Concord-Carlisle	1.0	9,184

Marion	1.0	9,184
New Salem-Wendell	1.0	9,184
Sturbridge	1.0	9,184
Worthington	1.0	9,000
Clarksburg	0.9	8,082
Wales	0.4	6,645
Martha's Vineyard	0.5	4,408
Chesterfield-Goshen	0.3	2,663
Pelham	0.2	1,469
Edgartown	0.1	1,102
Weston	0.1	735
Wrentham	0.1	459
Grand	4,146.7	\$41,437,450

Appendix C: CMVS Academic Achievement Data

The Department did not issue school, district, or state accountability determinations for the 2019-2020 school year due to the cancellation of state assessments and school closures related to COVID-19. Additionally, the Department did not issue school, district, or state accountability determinations in 2021; spring 2021 MCAS administration included a partial test for grades 3-8 and some grade 3-8 students took the assessment remotely. All Massachusetts schools administered the full MCAS for grades 3-8 and 10 during the spring of 2022. Due to prior data disruption, the Department published some, but not all, of the data for the statewide accountability system in 2022. The Department published all data available for the statewide accountability system in 2023, based on two years of MCAS administration (2022 and 2023).

Next Generation MCAS Tests of Spring 2023 - Percent of Students at Each Achievement Level for GCVS

Grade and Subject	Meeting or Exceeding Expectations %		Exceeding Expectations %		Meeting Expectations %		Partially Meeting Expectations %		Not Meeting Expectations %		No. of Students Included	Part. Rate %	Avg. Scaled Score	Avg. SGP	Included in Avg. SGP
	District	State	District	State	District	State	District	State	District	State					
GRADE 03 - ENGLISH LANGUAGE ARTS	19	44	2	7	17	37	50	40	31	16	42	79	482	N/A	N/A
GRADE 03 - MATHEMATICS	15	41	3	8	13	33	35	39	50	20	40	77	473	N/A	N/A
GRADE 04 - ENGLISH LANGUAGE ARTS	45	40	3	5	41	34	38	43	17	17	29	64	492	41	21
GRADE 04 - MATHEMATICS	17	45	0	8	17	37	59	37	24	18	29	67	481	36	21
GRADE 05 - ENGLISH LANGUAGE ARTS	29	44	0	5	29	39	50	40	21	16	48	83	489	42	33
GRADE 05 - MATHEMATICS	18	41	0	5	18	36	52	46	30	13	50	85	482	39	33
GRADE 05 - SCIENCE AND TECH/ENG	34	42	2	8	32	33	44	40	22	19	50	85	491	N/A	N/A
GRADE 06 - ENGLISH LANGUAGE ARTS	29	42	2	8	27	34	49	34	22	24	59	72	484	47	34
GRADE 06 - MATHEMATICS	10	41	2	7	8	34	59	42	31	17	61	74	482	42	34
GRADE 07 - ENGLISH LANGUAGE ARTS	28	40	1	8	27	33	53	40	19	19	81	79	486	38	42
GRADE 07 - MATHEMATICS	13	38	1	8	11	31	55	40	33	22	80	77	481	38	41
GRADE 08 - ENGLISH LANGUAGE ARTS	28	44	3	10	25	34	43	34	29	22	96	74	484	43	58
GRADE 08 - MATHEMATICS	10	38	0	7	10	30	51	42	39	20	97	75	477	34	58
GRADE 08 - SCIENCE AND TECH/ENG	26	41	5	6	21	35	53	40	22	19	97	76	488	N/A	N/A
GRADE 10 - ENGLISH LANGUAGE ARTS	48	58	13	15	35	43	48	30	4	11	83	72	502	45	48
GRADE 10 - MATHEMATICS	36	50	1	10	34	40	51	42	13	9	90	79	491	35	54
GRADE 10 - SCIENCE AND TECH/ENG	29	47	0	11	29	36	53	42	18	11	49	87	488	N/A	N/A
GRADES 03 - 08 - ENGLISH LANGUAGE ARTS	29	42	2	7	27	35	48	39	24	19	355	75	486	42	188
GRADES 03 - 08 - MATHEMATICS	13	41	1	7	12	33	52	41	35	18	357	76	479	37	187
GRADES 05 & 08 - SCIENCE AND TECH/ENG	29	41	4	7	24	34	50	40	22	19	147	79	489	N/A	N/A

Next Generation MCAS Tests of Spring 2023 - Percent of Students at Each Achievement Level for TECCA

Grade and Subject	Meeting or Exceeding Expectations %		Exceeding Expectations %		Meeting Expectations %		Partially Meeting Expectations %		Not Meeting Expectations %		No. of Students Included	Part. Rate %	Avg. Scaled Score	Avg. SGP	Included in Avg. SGP
	District	State	District	State	District	State	District	State	District	State					
GRADE 03 - ENGLISH LANGUAGE ARTS	44	44	2	7	42	37	39	40	17	16	59	66	491	N/A	N/A
GRADE 03 - MATHEMATICS	23	41	3	8	20	33	33	39	44	20	61	69	478	N/A	N/A
GRADE 04 - ENGLISH LANGUAGE ARTS	29	40	3	5	26	34	43	43	29	17	70	62	484	33	51
GRADE 04 - MATHEMATICS	20	45	6	8	14	37	39	37	41	18	69	63	479	30	51
GRADE 05 - ENGLISH LANGUAGE ARTS	43	44	4	5	39	39	38	40	19	16	102	66	493	43	77
GRADE 05 - MATHEMATICS	33	41	10	5	23	36	45	46	22	13	103	72	491	44	77
GRADE 05 - SCIENCE AND TECH/ENG	40	42	14	8	26	33	38	40	22	19	98	69	494	N/A	N/A
GRADE 06 - ENGLISH LANGUAGE ARTS	38	42	3	8	34	34	35	34	28	24	120	70	488	47	81
GRADE 06 - MATHEMATICS	29	41	2	7	27	34	44	42	27	17	117	71	487	48	81
GRADE 07 - ENGLISH LANGUAGE ARTS	45	40	5	8	40	33	41	40	14	19	155	67	495	47	110
GRADE 07 - MATHEMATICS	29	38	2	8	27	31	43	40	28	22	155	68	486	38	113
GRADE 08 - ENGLISH LANGUAGE ARTS	35	44	6	10	29	34	46	34	19	22	173	61	492	47	116
GRADE 08 - MATHEMATICS	19	38	2	7	17	30	50	42	31	20	179	64	482	34	123
GRADE 08 - SCIENCE AND TECH/ENG	34	41	5	6	29	35	47	40	19	19	168	60	491	N/A	N/A
GRADE 10 - ENGLISH LANGUAGE ARTS	45	58	4	15	41	43	45	30	9	11	245	67	497	39	145
GRADE 10 - MATHEMATICS	24	50	3	10	21	40	63	42	13	9	235	64	489	33	143
GRADE 10 - SCIENCE AND TECH/ENG	36	47	6	11	30	36	49	42	14	11	162	87	492	N/A	N/A
GRADES 03 - 08 - ENGLISH LANGUAGE ARTS	39	42	4	7	35	35	41	39	20	19	679	65	491	45	435
GRADES 03 - 08 - MATHEMATICS	26	41	4	7	22	33	44	41	30	18	684	67	484	39	445
GRADES 05 & 08 - SCIENCE AND TECH/ENG	36	41	8	7	28	34	44	40	20	19	266	63	492	N/A	N/A